

MACA NO.80 OF 2020

5. 03.12.2020 This matter is taken up through Video Conferencing because of COVID-19 Pandemic.

Heard Mr.Adam Ali Khan, learned counsel for the appellant and Mr. P.K. Mishra, learned counsel for respondent nos.1 to 5.

The appellant-Insurance Company has preferred this appeal challenging the judgment dated 23.11.2019 passed by the learned 1st Additional District Judge-cum-1st Motor Accident Claims Tribunal, Cuttack in M.A.C. Case No.245 of 2016, awarding an amount of Rs.22,28,597/- only with simple interest at the rate of 6% per annum with effect from the date of filing of the claim application, i.e., on 07.04.2016 to the claimant-respondents through the learned Tribunal within two months hence having a right to recover the same from the respondent no.6-owner of the offending vehicle, failing which the respondents-claimants would be at liberty to realize the awarded amount along with the interest at the rate of 12% per annum after completion of two months till payment by the appellant-Insurance Company.

Learned counsel for the appellant submits that the appellant-Insurance Company has challenged the impugned award mainly on three grounds :

- (I) The alleged offending vehicle was not involved in the accident and the same was planted by the claimant-respondents in connivance with the owner of the vehicle in question which clearly establishes the fact that the claimant-respondents have perpetuated

fraud for sake of getting compensation illegally from the appellant-Insurance Company, but the learned Tribunal has discarded the same on the basis of the charge-sheet submitted by the police which has not been proved in accordance with law hence the judgment passed by the learned Tribunal is unsustainable in the eye of law and the same is liable to be set aside;

- (II) Even if the alleged offending vehicle was involved in the accident then also the accused driver who was none other than the brother of the owner of the alleged offending motorcycle and was aged about 12 years as per the charge-sheet had not D.L. at the material time of accident which clearly establishes the conscious breach of the policy condition by the owner of the insured vehicle as such as per the judgment of the Hon'ble Supreme Court passed in the cases of ***Sardari & Others Vrs. Susil Kumar and others reported in (2008) 17 SCC 208*** & ***United India Ins. Co. Ltd. vrs. Sujata Arora & Others reported in 2013 (3) T.A.C.29 (S.C)*** are squarely applicable in the facts and circumstances of the case, but the same has not been appreciated by the learned Tribunal in correct legal prospective. Hence the impugned judgment is liable to be set aside and the appellant be exonerated from paying any compensation;
- (III) The alleged offending motorcycle as well as the accused driver could not be able to produce the D.L.

during the course of investigation of the police for which police had submitted charge-sheet under Section 181 of the M.V.Act, for the sake of avoiding his liability. The owner of the alleged offending motorcycle has filed the xerox copy of the D.L. of the accused driver who is none other than his brother but failed to produce his original D.L. in the court on the other hand on verification of the said D.L. by the appellant-Insurance Company it is found to be a fake one which clearly establishes the fact that the owner of the alleged offending vehicle has played fraud in the court by filing the xerox copy of a forged document for which the learned Tribunal ought to have directed for initiation of a criminal proceeding against the owner of the vehicle which has been lost sight of the learned Tribunal hence the impugned judgment is liable to be set aside.

Learned counsel for the claimant-respondents has raised objection to the impugned award by filing separate appeal for enhancement of the quantum of compensation.

Considering the submissions made by the learned counsel for the parties, and on perusal of the impugned order more particularly on the basis on which the same has been arrived at, the impugned order dated 23.11.2019 passed by the learned 1st Additional District Judge-cum-1st Motor Accident Claims Tribunal, Cuttack in M.A.C. Case No.245 of 2016 is set aside and the amount of compensation awarded by the learned Tribunal is modified to Rs.17,35,000/- (Rupees Seventeen lakhs thirty five

thousand). The appellant-Insurance Company is directed to deposit the modified amount with 6% per annum from the date of filing of the claim case till realization before the learned Tribunal within a period of eight weeks from today. Learned Tribunal is directed to disburse the same to the claimant-respondents proportionately as per the direction in the impugned order on proper identification.

However, the insurer appellant may proceed against the owner of the offending vehicle for recovery of the modified awarded amount as the right to recovery has already granted by the learned Tribunal.

Upon showing the receipt of deposit of the awarded amount before the learned Tribunal the statutory deposit along with interest be refunded to the appellant.

Accordingly, the MACA is disposed of.

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P. Patnaik, J.